



POLICE DEPARTMENT

December 20, 2011

MEMORANDUM FOR: Police Commissioner

Re: Police Officer Lissette Torres Ocasio
Tax Registry No. 919968
48 Precinct
Disciplinary Case No. 86342/10

The above-named member of the Department appeared before me on August 17, 2011, charged with the following:

1. Said Police Officer Lissette Torres-Ocasio, assigned to the 48th Precinct, while on duty, on or about October 14, 2008, at or about 2200 hours, in the vicinity of [REDACTED], did abuse her authority as a member of the New York City Police Department in that she stopped Steven Townsend, without sufficient legal authority.

P.G. 212-11, Page 1, Paragraphs 1 & 5 – STOP AND FRISK

2. Said Police Officer Lissette Torres Ocasio, assigned to the 48th Precinct, while on duty, on or about October 14, 2008, at or about 2200 hours, within the confines of the 48th Precinct Stationhouse, Bronx County, did abuse her authority as a member of the New York City Police Department in that she issued a summons for Disorderly Conduct to Steven Townsend, without sufficient legal authority.

P.G. 203-10, Page 1, Paragraph 5 – ABUSE OF AUTHORITY

3. Said Police Officer Lissette Torres-Ocasio, assigned to the 48th Precinct, while on duty, on or about October 14, 2008, in the vicinity of [REDACTED], did fail and neglect to make entries in her Activity Log (PD 112-145) regarding her encounter with Steven Townsend, as required.

P.G. 212-08, Pages 1-2 – MAINTENANCE OF PROPER ACTIVITY LOGS

The Department was represented by Laura Edidin, Esq. and Special Investigator Elizabeth Johnson, Civilian Complaint Review Board. Respondent was represented by Michael Martinez, Esq.

Respondent, through her counsel, entered a plea of Not Guilty to Specification Nos. 1 and 2; and a plea of Guilty to Specification No. 3. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review.

DECISION

Respondent is found Not Guilty of Specification No. 1 and Guilty of Specification No. 2. Having pleaded Guilty, Respondent is found Guilty of Specification No. 3.

INTRODUCTION

It is not in dispute that on October 14, 2008 Respondent as well as Sergeant Carlos Hernandez and Police Officer Mark King spoke to Steven Townsend and his friends as they engaged in conversation outside of their residence in the vicinity [REDACTED]. It is also not in dispute that Respondent failed and neglected to make entries in her Activity Log regarding her encounter with Townsend. What *is* in dispute is whether 1) Respondent abused her authority as a member of the New York City Police Department in that she stopped Steven Townsend, without sufficient legal authority and 2) Respondent abused her authority as a member of the New York City Police Department in that she issued a summons for Disorderly Conduct to Steven Townsend, without sufficient legal authority.

SUMMARY OF EVIDENCE PRESENTED

The Department's Case

The Department called Steven Townsend as its sole witness.

Steven Townsend

Townsend is 61 years old. For the last seven years, he has lived in the vicinity of [REDACTED]. He has a criminal record. He could not recall, but admitted it was possible that on September 1, 1976, he pled guilty to Petit Larceny and was fined \$50 and it was also possible that on April 25, 1977, he pled guilty to Disorderly Conduct with a sentence of time served. Townsend was able to recall that on January 9, 1979, he pled guilty to Robbery and served a five-year sentence for it. Finally, he could not recall but admitted it was possible that on June 15, 1989, he pled guilty to Criminal Possession of a Hypodermic Instrument, which was conditionally discharged.

Townsend testified that on October 14, 2008 at approximately 10:00 p.m., he was sitting outside of his building with three other men who lived there, talking about topics such as sports and women. He stated that it was not unusual for him to do this. He was "sitting on a bar" on the scaffolding outside of his building and was "facing [his] building" with his back to the street. His friends were "to the right" of him on the scaffold facing the street.

While they were talking, Townsend saw a police car's reflection in mirrors on the building. He stated that the car was marked and slowed down where they were gathered. He saw two uniformed officers exit the car. He never learned their names, but described

one as Hispanic or black and approximately six feet tall, and the other as black and approximately five feet seven inches tall. Townsend stated that the officers asked the men whether they lived in the building and had identification. Townsend testified that they responded, "Yes, we live here. We have ID." As he reached for his wallet, "somebody grabbed [his right] arm...from behind." The person told him to, "Get the fuck on the wall." He reacted by "yank[ing]" his hand away and asked the person, "What the fuck are you doing?" Townsend learned that the person who grabbed him was a female police officer because she, a sergeant, and another officer immediately surrounded him. They handcuffed him and took him to the 48 Precinct where he was given a summons for Disorderly Conduct that was eventually dismissed. Townsend did not file a civil lawsuit regarding this incident.

On cross-examination, Townsend stated that he is aware of criminality in the area that he lives in, specifically drug sales. He did not recall giving a statement that there is drug activity around both corners of his street, but he knew that the "main one is around the corner." He has never called the Department about it because he is "not into it, so it's not [his] concern." He also stated that he has "never actually seen" criminal activity on the block, but is "aware of it because police go there pretty often."

Regarding the incident, Townsend reiterated that he first saw the police car through mirrors that are on his building. Two male officers exited the car, and one of them said, "Excuse me. Do y'all live here? Do you have ID?" Townsend admitted that this "has happened before, quite a few times" while sitting outside of his building. But in his initial Civilian Complaint Review Board (CCRB) interview, which he "probably" gave the day after the incident, Townsend told investigators that the officers "got out of

the car and said, 'Everyone get on the fucking wall'...They didn't say, 'Excuse me fellows, do you live here? Do you have ID?' When the Sergeant and them did get out of the car, then they started asking [those questions]." In response to this inconsistency, Townsend stated that if he said that, he did not recall saying it like that. He did not remember giving that statement and did not necessarily agree that his memory of the incident was better immediately following it than it was at trial. He stated that he did not lie to CCRB, and referring to the statement, explained that "something of that nature happened before." When asked if he may have been confusing the incident in question with prior events when he reported it to CCRB, he replied that CCRB may have been confusing it.

Townsend stated that after being asked for identification, all of the men began to get it out of their pockets. As he was getting ready to do this, he heard someone say, "Get the fuck on the wall" and then felt his arm being grabbed. As a "natural reaction," he "jerk[ed]" or brought back his arm, but did not swing it. He admitted asking, "What the fuck you doing?" and that at the same time, he turned and saw that the person who grabbed him was a female officer. He admitted that while he knew that officers were present, he only saw the two in front of him and was unaware that a third one was present until she grabbed his arm. That is why he was surprised to feel someone touch his arm, especially when he was getting his identification as instructed. He did not remember her telling him to move in any direction before grabbing him. By the time he realized she was an officer, "everybody just came and they grabbed [him]." His friends were to the right of him, but he did not remember them saying anything to him. He was the only one

that the officers grabbed, and he did not see any physical contact between the other men and the officers. He was taken to the precinct and given a summons.

In terms of the robbery, Townsend admitted that it was a “Robbery One and [he] served five years for it,” but he stated that he “didn’t rob anybody.” During the arrest, an officer injured him by “stomp[ing]” on him, specifically his hand. This hand injury, however, is not the source of his current disability and unemployment.

Townsend disagreed that he has an unfavorable view of the Department. When told that three of his prior statements include his comments about officers doing things to him and bothering him for no reason, he replied, “But that’s what goes on.” Townsend reiterated that he did not file a civil suit concerning the incident or make inquiries into filing one, but agreed that he gave several statements to CCRB investigators regarding it. He admitted that “out of anger,” he might have told investigators that he was going to file a lawsuit against the Department to protect himself from similar incidents. He explained that since he has lived in the Bronx, he has “been stopped and harassed maybe eight to nine times” by officers for no reason. Although he has “been thrown up on a wall a few times by the police,” the incident in this case is the only time that he was arrested or given a summons. He has made “one or two” complaints with CCRB in response to these incidents. He agreed that on the night of the incident, an officer who was not involved in his arrest saw him at the precinct and said, “Yeah, we have Pop again. We got him arrested again.” Although Townsend stated that he had never been in that precinct before, he recognized the officer as one who had previously thrown him on the wall and searched him “like it was a joke.” He was uncertain whether it was a police officer that he made a complaint about.

Townsend stated that prior to living at his current address in the Bronx, he lived in Brooklyn all of his life. During that time, he “never” had any problems with police officers stopping and harassing him.

On further questioning by the Court, Townsend did not respond to why his complaint was dismissed. He agreed that he went to court once, and it was dismissed.

Respondent’s Case

Respondent called Sergeant Carlos Hernandez (retired) as a witness and testified in her own behalf.

Sergeant Carlos Hernandez (retired)

Hernandez is a retired police sergeant who was a member of the Department for 21 years until his retirement six months ago. He was a sergeant at the 48 Precinct for “close to three years.” During that time, he supervised Respondent.

On October 14, 2008, Hernandez was working “an impact overtime tour in the 48 Precinct,” an area which he described as “very crime ridden.” He explained that the purpose of the impact tour is for officers to maintain a visible presence in high crime areas. They must be on the lookout for anything with the goal of dealing with and deterring crime. The most common method of patrol is “to just get out of the car and just talk to people... whoever happens to be on the block, walk[ing] in and out of buildings... [They ask,] ‘How are you? What’s going on? Everything okay?’ Just letting you know that we’re there... we’re there for them.” He continued that “[m]any times you walk up to the person not suspecting them of doing anything... [a]nd they openly admit

to...carrying drugs or [having] a gun or [having] a warrant.” The officer is then supposed to fill out a UF-250¹ for every person stopped and addressed.

He stated that Respondent and Police Officer Mark King were working with him on the impact tour on the night of the incident. He testified that their car was unmarked, but admitted that he previously believed that it was marked. He explained that he spoke with Respondent earlier on the day of the trial, and she told him that it was unmarked. He could not recall on his own whether it was, but he believed that he told CCRB that it was a marked car. He stated that they were all in uniform.

Hernandez stated Respondent was driving the car. He testified that they stopped because “five or six guys [were] just standing around in front of the building, and that’s the perfect recipe for the kind of situation where we get out of the car and just kind of make our presence known.” Respondent parked the car, and then they got out and walked up to the men. He agreed that it was his practice to approach individuals even if they had not done anything wrong. Hernandez remembered “taking the lead” and he asked the men, “[W]hat’s going on guys? Is everything all right tonight?” He added that his demeanor and tone were intentionally “very relaxed.” He does this so that people know that the officers are “not there to bust chops” and that they only want “to see what’s going on” before moving along. He stated that this approach is consistent with Department strategy and that he has been trained in this type of encounter and overtime.

Hernandez described all the individuals as compliant except for one who “took offense to us even talking to him.” He later learned that the man was Townsend. Hernandez testified that after asking the men how they were doing but before asking them to do anything, Townsend “kind of raised his voice almost immediately saying that

¹ Stop, Question and Frisk Report Worksheet

‘[T]his is bullshit. You don’t have a right to stop and talk to us. I don’t have to do anything. I’m not giving anybody ID.’” Hernandez contrasted this behavior with that of the other men who treated the officers’ presence as “no big deal.”

Hernandez and King focused their attention on the other three or four men while Respondent tried to calm down Townsend who was behind and to the left of Hernandez. She told him to “relax,” that it was “no big deal” and asked “What’s going on? Do you live here? Can I see ID?” Hernandez testified that Townsend was “raising his voice and flailing his arms little bit,” and that “the incident really went kind of south” when Respondent “put her hand on his shoulder in an attempt to calm him down and simultaneously move him to where we would tactically be in a better position.” At that moment, it did not appear to Hernandez that Respondent was trying to arrest Townsend. In response to Respondent’s touch, Townsend “raised his arm and brushed her hand” off of his shoulder, making contact with her arm. Respondent then “grabbed [Townsend] by the clothes in his back, clenched his clothes in her fist and then kind of forced him over to where we were.” Hernandez did not believe that this constituted inappropriate behavior or misconduct. Since Townsend continued to be “loud and boisterous,” Respondent arrested him. He was brought to the station house where a warrant check was performed and he was given a summons.

Hernandez explained that Townsend’s behavior was “clearly” disorderly conduct. The first reason was that two or three times, Townsend refused a lawful order given by he and Respondent “to move over to where we wanted him to stand” for tactical purposes. The second reason was that he was “causing a scene and raising his voice.” Hernandez stated that Townsend’s raised voice impacted his job because it drew his attention away

from the other three men whom he was questioning, leaving King to address them.

Hernandez added that when the officers initially walked over to the men, Townsend “absolutely” had the right to walk away, but he never tried to do so.

Hernandez agreed that CCRB investigated him with respect to the events of that night. As a result, he accepted a Command Discipline with the penalty of five days. He stated that he accepted it “because I was ready to retire and had I not, I wouldn’t have been able to retire.” One of the charges against him was for not putting the incident in his Activity Log². Even though every action taken is supposed to be noted, Hernandez admitted that he “just didn’t do it that day.” He also did not verify whether Respondent recorded the incident in her Activity Log because he assumed that as “good officers,” she and King would have done it. Hernandez added that shortly after the incident and due to “newsworthy” incidents, “officers were scrutinized much more harshly for not making entries in memo books.” Prior to this, “it was widespread that all entries were not made.”

On cross examination, Hernandez stated that Respondent was assigned to the 48 Precinct during the approximately two years that he was assigned there. She was his driver on patrol “maybe three, four, five times.” Although he was unable to provide an exact number of times that they worked directly together, he stated it was “a lot.” He agreed that he knew her well and that she was an officer who would “assert herself.”

Hernandez acknowledged that he spoke to Respondent about the facts of the case while he was still working in the precinct and after he was notified by CCRB about their investigation. He stated that he also spoke to her earlier in the trial day about whether their vehicle was marked on the night of the incident. Although he could not remember, he was “sure” that he spoke to King as well.

² Informally referred to as “memo book” in testimony.

Hernandez agreed that his Command Discipline was for his failures to complete a memo book entry, to complete a UF-250, to properly supervise Respondent when she stopped Townsend, and for his interaction with the other men. He agreed that he accepted it because he was getting ready to retire.

Regarding the incident, he and King were passengers in the car that Respondent was driving. He agreed that he saw several black men talking in front of the building on the corner of [REDACTED] The decision to stop was "simultaneous." None of the officers said, "Let's stop these guys." It was understood that if they were on impact overtime and saw a group of people, they would pull over and talk to them. He also agreed that there was scaffolding surrounding the building and that Townsend was on one side of the scaffolding with his back to the street while the others were opposite him facing the street. Hernandez admitted that he observed them for about three to five seconds, and then exited the car even though he "did not" have a reason to suspect them of committing a crime.

Hernandez agreed that Townsend could have refused to answer his questions and was free to walk away without any consequences because he was not suspected of a crime. Hernandez added that "the problem was that he didn't try to walk away. He didn't want to just not answer the question and walk away. As soon as we approached, he became belligerent." They handcuffed him because he went "too far" he raised his voice, disrespected all of the officers, and "caus[ed] a scene where it was not necessary." The other three men that were with Townsend were compliant and never complained about having to produce identification.

In response to a series of hypothetical questions about the types of behaviors that would raise his suspicion, Hernandez repeatedly responded that his reaction depended on being in the moment. He admitted that the manner in which Townsend refused to provide identification raised his level of suspicion. Hernandez explained that instead of Townsend saying, “I know my rights. I was just standing here talking, I’m leaving’...he started with the ‘F’ bombs and raising his hands and voice, so that kind of draws a little attention.” He acknowledged that he was “sure” that Respondent probably used the same curse word in response.

Hernandez stated that the goal of the impact tour is to create an “omnipresence both for the people who are doing wrong and for the citizens who are just coming home late at night from work. We want them to see the officers getting out and addressing [people].” Although the impact overtime exists in order to deter and stop crime, he admitted that part of it includes generating activity such as writings summonses, UF 250s and making arrests. He acknowledged that sometimes a supervisor or a lieutenant would set a number of summons or UF 250s that they wanted officers to return with. Hernandez was “pretty sure” that they did not have a specific number to generate that night. He agreed that besides keeping the community safe, another reason for generating activity is to justify the overtime.

When asked how to decide which groups of people to approach while on the impact tour, Hernandez responded that they would not approach someone walking down the street with a shopping cart or stroller, or people heading towards their building with keys in their hands. He would stop men standing on a corner who seemingly had no purpose for being there or people sitting in a parked car in front of a bodega in the middle

of the night. He agreed that he would approach as few as two people if they were standing in front of a building for no apparent reason late at night.

Referring to the incident, he stated that he would also stop a group standing in front of an entrance to a building in a high crime area at ten o'clock at night. He stated that even though it was common to see people there at that time, he decided to talk to the men because there were four or five of them just standing there with no one else around. He first said to them, "[W]hat's going on? [Is] [e]verything all right?" After being there for a few seconds, he then asked whether they lived there and had identification.

On further questioning from the Court, Hernandez disagreed that Respondent approached the men after Hernandez and King did. He stated that they all "got there at the same time." Respondent parked the car in a position that placed her closest to the men and allowed her to walk "right to the curb." King exited behind her while Hernandez had to walk around the car to reach the curb. They ended up at different places on the curb. Hernandez and King were on opposite sides of the group of men while Respondent approached Townsend who was "across and a little to the left" of the group. Hernandez testified that Respondent approached Townsend using the nearest opening in the scaffold and did not approach him from the back. Hernandez replied that Townsend "definitely" should have seen Respondent along with himself and King, particularly when Hernandez, who is almost six feet seven inches tall, engaged the men before being on the curb.

Respondent

Respondent has been a member of the Department for 13-and-a-half years. Her present command is the 48 Precinct where she has been assigned for over 12 years. She described the 48 Precinct as a "very busy house" that is "high in robberies, drugs, [and] pretty much everything." She is currently assigned to full duty patrol. She has never been served with charges other than the ones involved in this case and has never been modified or formally disciplined by the Department other than an occasional Command Discipline.

On October 14, 2008, Respondent was working an impact tour from 8:30 p.m. to 5:00 a.m., the time when the most robberies occur. The purpose of the impact tour was to deter crime, specifically robberies and drugs, and to remain omnipresent. This was accomplished by talking to people and trying to gather information about crimes. When they saw a group of people, they would exit the vehicle and talk with the group and ask how they were doing.

Respondent worked with Hernandez and King on that overtime tour. She had worked with both of them before and Hernandez had been her supervisor for about three years. During tours, they would exit their vehicle numerous times to question groups. Their patrol was routine that night until she saw "a group of guys just hanging out in front of [REDACTED], underneath the scaffold" around ten o'clock. Townsend, whom she had never seen before, caught her attention because while he initially was sitting on a pole and facing them, he then turned and faced the other direction. She acknowledged that Townsend did not do anything illegal or improper at the time. The officers stopped and all exited the vehicle with her approaching "behind" Hernandez and

King. They were wearing their uniforms at the time. Hernandez began to ask the group how they were doing and whether they lived in the building. Respondent stated that Hernandez spoke to the three or four other men who were standing on her left side. She spoke to Townsend who was about "four or five feet" away from the rest of the men.

Respondent testified that as soon as they approached, Townsend began "cursing, being belligerent, [and] boisterous." He told them "What the fuck? You guys always coming around here harassing me. You know, I'm tired of that shit. Why can't you just leave me the fuck alone?" Respondent stated that she told him to calm down, but he continued to curse and be boisterous. Since Townsend was on her right side, Respondent believed that it would have been tactically better if he moved to the left side.

Specifically, she wanted to offer backup to her Sergeant who was positioned between the group of other men and Townsend, with his back to Townsend. Since Townsend's conduct made her worry that the encounter "might turn ugly," and because she wanted everyone to be safe, Respondent decided to "put [Townsend] with everybody else." She tried to do this by placing her right hand on his left shoulder to both "calm him down and just to bring him to the other side so it could be safe for [them] tactically." She stated that it was not a police takedown and that she "barely grabbed him." She "kind of cuffed him" by putting her hands around his arms, but neither "forcefully grab[ed] him" nor used handcuffs. When she touched Townsend, he threw his hand back, making contact with her hand. She testified that although she was behind him, "he still had sight of us." She added that he "absolutely" saw her when she put her hand on him. Before this, she had even stood "on the side of him."

After he made contact with her hand, Respondent stated that she “forcefully grabbed him and...placed him against the wall.” She did this because “he brushed my hand away and he was acting disorderly.” Townsend kept cursing, and that was when she arrested him. She believed that he committed Disorderly Conduct because he was loud, cursing, and created a scene. She stated that the other men even told him to “[c]alm down.” She then took him to the 48 Precinct. Hernandez was present for the entire incident but never reprimanded her. He knew that she was writing a summons for Townsend, and that it was for Disorderly Conduct, subsection 6 for refusing to obey a lawful order. The order was “for him to calm down and for him to go to the other side of the wall...where the other individuals were.” She never testified about the summons and was unaware of its dismissal until the day of this trial.

She acknowledged that earlier in the trial day, she pled guilty to the last charge of not writing the summons in her Activity Log. She explained that when the incident occurred in October 2008, “[c]ustom and practice” was that an issued summons served as a record and so an officer did not have to put it in the Activity Log. She agreed that the Department made it known a few months to a year ago that everything must be put into the Activity Log.

On cross-examination, she stated that “as far as [she] can remember,” King was driving the car on the night in question. She agreed that she told CCRB that he was driving. She also told CCRB that all of the officers decided at the same time to approach Townsend and the other men. But when she was read her response to CCRB, she admitted telling them that after observing the men for about five seconds, she said, “[S]top the car. I’m gonna talk to these guys.” Respondent agreed that Townsend

attracted her attention because he was facing the street and looked at her, and when the officers decided to get out of the car, he turned his back to the street and looked the other way. When confronted with her CCRB transcript again, she agreed that she told CCRB that the reason they approached Townsend was because “he changed his direction of sight,” meaning that he looked at her and then looked away. She admitted that her statement that Townsend turned his body away was new information.

Respondent testified that Townsend’s glance did not make her think he had a weapon. She stated that when she thinks that a person has a weapon, she will “look at their waistband to see if they have a bulge.” However, when people look away from an officer like Townsend did, her assumption is that they might be hiding something. When confronted with her CCRB testimony, she agreed that she told investigators that Townsend “could have possibly had a gun. I couldn’t really tell. I mean, I didn’t see a bulge but when someone changes their direction of sight, you know, it could have been. He could have had a contraband. He could have had a weapon.” Respondent defended this statement by explaining that it was in response to specific questions by CCRB and that she only said that he “possibly” had a gun, not that he actually had one. She admitted that before approaching Townsend, she did not observe a bulge on him, did not overhear any of the men’s conversation, and did not receive any third party information that he had a weapon. She also admitted that she “possibly” thought Townsend had drugs on him based on the glance. She acknowledged that she did not see him engage in any hand to hand transaction, did not smell marijuana smoke, and did not see him holding a marijuana cigarette or a glassine envelope. She agreed that no third party told her that Townsend possessed drugs or had engaged in criminal activity.

Respondent explained that even though the fact that the other men were just standing there “kind of” drew the officers’ attention, they did not do anything else to attract attention. She replied that because the officers were doing “community policing,” they did not need a reason to approach the men. They are allowed to talk to people and usually ask general questions, but cannot single out a person based on race or gender.

She agreed that when she was speaking with Townsend, she told him to move over to where the other men were standing. She also agreed that she told CCRB that she asked him to move twice. She explained that she put her hand on him to calm him down because he was irate and belligerent. Additionally, she “gradually tried to put him to the other side.” She stated that she “barely” put her hands on him and did not push him or force him to move.

Townsend’s behavior, specifically his cursing at the officers, accusing them of singling him out, and being out of control led to the Disorderly Conduct summons. His refusal to move to the other side also contributed to it. She wrote him a summons for failing to obey a lawful order to move over to where the other men were. Respondent added that she “could have easily written him up for the other one as well” but did not do so. She agreed that she never ordered Townsend to leave the area, and that she actually ordered him to stand there with the rest of the men.

In terms of her failure to make an Activity Log entry, Respondent agreed that it was not emphasized or she did not know that she should note the summons in it. She acknowledged that the Patrol Guide provided for this and she was responsible for knowing it. She admitted that at this trial, she was relying entirely on her memory because she did not write anything about the incident in her Activity Log. While she

agreed that she has received a few Command Disciplines in her career, she did not remember receiving one before this incident for failing to make a Activity Log entry or for failing to conduct a warrant check.

FINDINGS AND ANALYSIS

The New York State Court of Appeals in People V. DeBour, 40 N.Y.2d 210 (1976) has identified four separate levels of street encounters that take place between the police and the public at large. Knowledge of these four levels and the requisite level of suspicion that accompanies each is critical to any evaluation of a street stop. These levels of encounter have similarly been adopted by the Police Department (PD 344-153):

Level I - Request for Information, is where a police officer has an articulable reason to approach someone, yet lacks the authority to search the person based on this low level of encounter. The level of suspicion required is any articulable reason to approach.

Suspicion of criminality is not required (Emphasis added). However, the member of the service must be able to articulate a basis beyond mere whim and caprice.

Level II - Common Law Inquiry, is where there is founded suspicion that criminality is afoot. This could be triggered by false responses to questions posed during the Request for Information, as well as observations by members of the service.

Level III Stop, Question and Frisk, involves a reasonable suspicion by the police officer that a person is committing, has committed or is about to commit a felony or Penal Law

misdemeanor. It is at this level that the information known to the member of the service is of such weight and persuasiveness as to make the member of the service, depending on his or her judgment and experience, reasonably suspects criminality. It is also during this level that Criminal Procedure Law Section 140.5 comes into play regarding making an arrest without a warrant (subdivision 1), searching an individual with consent and may frisk for a weapon where the police officer believes he is in danger of physical injury.

Level IV Arrest, involves probable cause to believe that a crime was committed and the person arrested committed it. At this level, a search incident to the arrest to secure weapons and prevent evidence destruction as well as to inventory property is permissible.

Specification No. 1

Respondent stands charged herein in that she abused her authority as a member of the New York City Police Department in that she stopped Steven Townsend without sufficient legal authority.

Based on the facts as presented before this forum, complainant Townsend and his friends were sitting in front of their building when they were approached by Respondent and two other uniformed officers. They were not stopped by the police based on reasonable suspicion (a Level III encounter—a stop, question and frisk type of encounter, where the level of suspicion required by the police officer is a reasonable suspicion that a person is committing, has committed or is about to commit a felony or Penal Law misdemeanor); but rather a request for information (Level I encounter) and as such, an in-depth evaluation of the United States Supreme Court decisions on reasonable

suspicion or a review of the Patrol Guide Procedure 212-11 factors as they relate to reasonable suspicion, is not warranted here.

Respondent testified that on October 14, 2008 she was working an impact tour from 8:30 p.m. to 5:00 a.m. She explained that the purpose was to deter crime, specifically robberies and drug sales and to remain omnipresent. Her supervisor, retired Sergeant Carlos Hernandez corroborated her testimony when he stated that they were working an impact tour in a high crime area and that they use this opportunity to talk to people and let their presence be known. Both established that as police personnel they are not forbidden from walking up to people and talking to them, even if they do not suspect the person or persons to be engaged in criminal activity. Both Respondent and Hernandez testified that they observed the males [Townsend and others] as they rode in their Department vehicle and made a decision to stop and talk to them. The officers approached them and asked if they lived there. Hernandez asked them to verify their residence by showing him some identification. Everyone complied except Townsend who became irate. In fact, Hernandez described his conduct as disorderly. Townsend was the only person stopped who was taken into police custody.

Clearly, Respondent along with Hernandez who were working impact in a high crime area, were both able to articulate a reason to approach the men. They intended to talk to them, make their presence known, but did not get past Hernandez asking the males to identify themselves because Townsend was opposed to the initial inquiry. Respondent had a legal right as a police officer to approach people on the street and talk to them pursuant to a Level I inquiry, particularly Townsend and his friends who were sitting and talking. Respondent was not engaged in misconduct. Respondent and the other officers

were attempting to gain information and make their police presence in the neighborhood known.

Accordingly, given the fact that Respondent and Hernandez were able to credibly articulate a basis for walking up to the individuals to talk pursuant to a Level I request for information, I find Respondent Not Guilty of Specification No. 1.

Specification No. 2

Respondent stands charged herein in that she abused her authority as a member of the New York City Police Department in that she issued a summons for Disorderly Conduct to Steven Townsend without sufficient legal authority. Respondent is found Guilty as charged.

The language of Penal Law section 240.20, Disorderly Conduct states in pertinent part:

A person is guilty of disorderly conduct when, with intent to cause public inconvenience, annoyance or alarm, or recklessly creating risk thereof:

6. *He congregates with other persons in a public place and refuses to comply with a lawful order of the police to disperse;*

Townsend testified that he was approached by the police. He acknowledged that he was asked if he lived there and as he attempted to retrieve his identification to show to the police as requested, he felt someone touch his arm. He instinctively jerked away and

stated, "What the fuck are you doing?" He then realized that the person he swung back at was a female police officer that he had not seen before. Townsend did not apologize for his actions and then comply with the police request. Instead, according to Respondent's version of events, once Hernandez requested identification from the men, Townsend was the only one who was noncompliant and refused to provide his identification. Townsend became loud and used profanity. Townsend then refused to comply with Respondent's order to get to the other side of the wall where the other males were. Based on Townsend's behavior, Respondent decided to issue him a summons for Disorderly Conduct and cited subsection 6.

Respondent noted that following Hernandez's request for the men to show him their identification, Townsend began to utter profanity such as, "What the fuck? You guys always coming around here harassing me...I'm tired of that shit. Why can't you just leave me the fuck alone?" Respondent testified that she began to feel concern for everyone's safety and felt that Townsend should be where the other males were standing for safety reasons. She grabbed him in a firm manner. She explained that she 'kind of cuffed him' by putting her hands around his arms, not in a forceful manner, in an attempt to move him to where the others were. Townsend, however, threw his hand back making contact with her hand and continued to curse. Respondent said he was acting disorderly and she made the decision to arrest him. Respondent disputed Townsend's claim that he did not see her until after he swung at her. Respondent added that she knew Townsend had seen her and the other police officers. She said that she did approach him from behind, but at other points during his profane tirade, she was on the side of him. Hernandez corroborated this account when he stated upon questioning by the Court that

that all three of the police personnel approached the men at the same time. He denied that Respondent approached after.

Respondent said that given Townsend's behavior, she could have charged him with violating a number of subsections of the Disorderly Conduct sections of the Penal Law, but she chose subsection 6. It is not necessary for this Court to analyze the other subsections of the Disorderly Conduct statute to determine if Townsend was engaged in disorderly conduct because Respondent issued a summons only for a violation of subsection 6. Unfortunately for Respondent, the failure to comply with a lawful order pursuant to that requirement of the Penal Law statute necessitates her to also order Townsend to disperse and she did not do that. In this instance, Respondent and her supervisor felt that Townsend's conduct was disorderly. This is evident by the fact that Respondent issued a Disorderly Conduct summons to Townsend and her supervisor, Hernandez, did not dissuade her from doing so.

It is the Court's belief that Respondent is a proactive police officer who lacked an improper intent or malice when she issued a summons to Townsend. The Court also notes that Hernandez, a retired sergeant came in to court on his own time to testify about the events as they unfolded on behalf of Respondent. However, Respondent lacked a sufficient legal basis to issue a Disorderly Conduct summons given the language contained in subsection 6 of the Penal Law statute.

Accordingly, Respondent is found Guilty of Specification No. 2

Specification No. 3

Respondent stands charged herein in that while on duty on or about October 14, 2008 in the vicinity of 750 East 178 Street, Bronx County, did fail and neglect to make entries in her Activity Log regarding her encounter with Steven Townsend as required. Respondent is found Guilty as charged.

Evidence adduced at trial established that Respondent pleaded Guilty to failing to write about the issuance of the summons to Townsend in her Activity Log. Respondent explained that it was “custom and practice” that the issuance of a summons served as a record to a police officer of the action taken. Respondent acknowledged, however, that the Department made it clear that a police officer’s activity must be noted in his or her Activity Log.

Accordingly, Respondent is found Guilty of Specification No. 3.

PENALTY

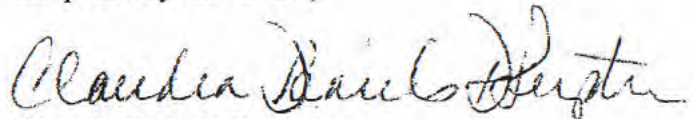
In order to determine an appropriate penalty, Respondent’s service record was examined. See Matter of Pell v. Board of Education, 34 N.Y.2d 222 (1974). Respondent was appointed to the Department on December 7, 1997. Information from her personnel folder that was considered in making this penalty recommendation is contained in the attached confidential memorandum.

Respondent has been found Guilty of issuing a Disorderly Conduct summons to Townsend without sufficient legal authority and failing to make an entry in her Activity Log regarding her encounter with Townsend.

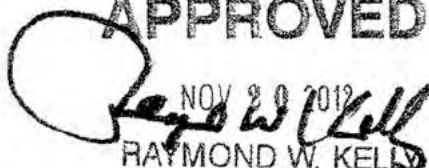
The Assistant Department Advocate asked for a penalty of the forfeiture of ten vacation days. The Court disagrees. Respondent was found Not Guilty of Specification No. 1. In addition, the Court found that Respondent did not act with malice in the issuance of the summons. She lacked the legal authority to do so based on the language contained in subsection 6 of the statute. Respondent also pleaded Guilty to Specification No. 3 and acknowledged that the Department required her to keep a record of her enforcement activity in her Activity Log.

Accordingly, based on the above, it is recommended that Respondent forfeit five vacation days.

Respectfully submitted,



Claudia Daniels-DePeyster
Assistant Deputy Commissioner-Trials

APPROVED

NOV 20 2012
RAYMOND W. KELLY
POLICE COMMISSIONER

POLICE DEPARTMENT
CITY OF NEW YORK

From: Assistant Deputy Commissioner – Trials
To: Police Commissioner
Subject: CONFIDENTIAL MEMORANDUM
POLICE OFFICER LISSETTE TORRES OCASIO
TAX REGISTRY NO. 919968
DISCIPLINARY CASE NO. 86342/10

In 2008, 2009 and 2010 Respondent received an overall rating of 4.5 “Above Highly Competent” on her annual performance evaluations. Respondent has received five Excellent Police Duty Medals and four Meritorious Police Duty Medals in his career to date.

[REDACTED]
[REDACTED]
[REDACTED]

Respondent has no prior formal disciplinary record.

For your consideration.



Claudia Daniels-DePeyster
Assistant Deputy Commissioner Trials